

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF BORIS AND OTHERS v. RUSSIA

(Applications nos. 2838/22 and 15 others –
see appended list)

JUDGMENT

STRASBOURG

7 December 2023

This judgment is final but it may be subject to editorial revision.



In the case of Boris and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 16 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by Memorial Human Rights Centre, an organisation based in Moscow at the time.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

7. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

8. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

9. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

10. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

11. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

12. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

13. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

14. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

15. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 14 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 7 December 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
1.	2838/22 09/12/2021	**Aleksey Andreyevich BORIS** 2002	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 09/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 7 p.m. on 23/01/2021 to 1 a.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
2.	4578/22 17/12/2021	**Nikita Valeryevich CHECHIKOV** 1995	Rally "Free Navalnyy" Chelyabinsk 21/04/2021	article 20.2 § 5 of CAO	30 hours of community work	Chelyabinsk Regional Court 17/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 21/04/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
3.	4626/22 24/12/2021	**Vasiliy Anatolyevich IPPOLITOV** 1986	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 11/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station and detention at the police station after compiling an offence report from 7 p.m. on 31/01/2021 to 7 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
4.	5566/22 24/12/2021	**Margarita Viktorovna DUDENKOVA** 2001	Rally "Free Navalnyy" Saransk 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Republic of Mordovia 07/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 8.45 p.m. on 21/04/2021 to 2.05 a.m. on 22/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
5.	5635/22 24/12/2021	**Mariya Dmitriyevna CHUPINA** 1997	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 21/10/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.50 a.m. on 03/02/2021 to 8.35 a.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	5643/22 24/12/2021	**Mariya Aleksandrovna MOZHAYEVA** 2000	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 25/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 1.30 a.m. to 7.30 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
7.	5791/22 09/12/2021	**Andrey Sergeyevich ELSHIN** 1992	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 11/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 9.45 p.m. on 02/02/2021 to 9 a.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
8.	5795/22 09/12/2021	**Ilya Sergeyevich KARNAVSKIY** 1996	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 10/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.15 p.m. to 9 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
9.	5798/22 09/12/2021	**Yuriy Dmitriyevich GARNOV** 1999	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 11/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 11.05 a.m. to 8.50 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
10.	7146/22 26/01/2022	**Denis Aleksandrovich PALASHKIN** 1989	Rally "Free Navalnyy" Voronezh 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 27/07/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 21/04/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
11.	7261/22 13/01/2022	**Sergey Yevgenyevich GINDILIS** 1994	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 13/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3 p.m. on 31/01/2021 to 12.30 a.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
12.	7321/22 27/01/2022	**Mark Armenovich FRANGULYAN** 2000	Rally "Free Navalnyy" Moscow 02/02/2021 Election protest Moscow 20/09/2021	article 20.2 § 5 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 detention for 15 days	Moscow City Court 09/08/2021 Moscow City Court 08/10/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report: 1) from 11.30 p.m. on 02/02/2021 to 5.20 a.m. on 03/02/2021; 2) from 5.40 p.m. on 24/09/2021 to 2.30 p.m. on 25/09/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the Code of Administrative Offences.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
13.	7324/22 27/01/2022	**Yaroslav Aleksandrovich KURENKOV** 1996	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 29/09/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.10 a.m. to 1 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
14.	7329/22 27/01/2022	**Sofya Mikhaylovna SENCHENKOVA** 1994	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 29/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.05 a.m. to 5.38 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
15.	7331/22 20/01/2022	**Dmitriy Mikhaylovich BIBICHKOV** 1990	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 29/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.30 a.m. to 9.50 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
16.	7341/22 20/01/2022	**Pavel Aleksandrovich YAGUSHEVSKIY** 1996	Rally "Free Navalnyy" Perm 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 23/07/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 22/04/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.